

	Memorial Hospital 2026-01566981	Hospital (collectively, Sharp) filed in response to the petition to confirm arbitration award filed by Kaiser Foundation Health Plan (Kaiser), (2) motion to seal portions of Kaiser’s petition to confirm arbitration award, and (3) motion to seal Kaiser’s opposition to Sharp’s motion to vacate the arbitration award. At prior hearings on the motions, the court pointed out various deficiencies with the motions, including the lack of proofs of service for some filings, Sharp’s failure to file an unredacted version of its opposition, and the failure to make the requested redactions/sealings sufficiently narrowly tailored. At the last hearing, the court ordered the parties to meet and confer regarding what specific portions of the various documents at issue they sought to seal and to file a joint statement identifying specific what portions they seek to seal and a correlation table identifying the seals and unsealed version of the documents. The parties have corrected the various deficiencies regarding the lack of proof of service and the failure to file an unredacted version of Sharp’s opposition. The parties also have filed the joint statement the court ordered. Accordingly, the only remaining question is whether the requested sealings satisfying the standards for sealing. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules Ct., rule 2.550(c).) “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (<i>Id.</i> at rule 2.551(a).) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (<i>Id.</i> at rule 2.551(b)(1).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: [¶] (1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules Ct., rule 2.550(d).) “Only the specific words or documents that constitute sensitive materials should be sealed; generally, it is not
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		permissible to seal the entire document.” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2025) ¶9:418.5.) Matters that may qualify for sealing—i.e., there may be an overriding interest that overcomes the right to public access—include trade secrets (<i>In Re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988) and confidential settlement agreements (<i>Universal Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283.) However, a settlement agreement that contains a confidentiality clause does not qualify for sealing after all references to financial and other confidential data have been redacted. (<i>Id.</i> at p. 1284; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 107.) Indeed, the mere existence of a confidential settlement agreement resolving a public lawsuit does not warrant sealing the entire agreement, nor is the sealing of standard, nonconfidential provisions warranted. (<i>Ibid.</i>) As the Rules of Court require, the sealing must be narrowly tailored. The court has reviewed the most recent proposals by the parties regarding the sealing of the documents identified in the joint statement. The court acknowledges the parties have worked again to more narrowly tailor the specific provisions they seek to seal. Based on the foregoing, the motions are GRANTED IN PART and DENIED IN PART. Specifically, the motions are GRANTED as to (1) the identified portions of Exhibit 1 to the joint statement (i.e., Kaiser’s petition to confirm the arbitration award), (2) the identified portions of Exhibit 2 to the joint statement (i.e., Sharp’s opposition and request to vacate the arbitration award), (3) the identified portions of Exhibit 3 to the joint statement (i.e., the Toooh Declaration in support of Sharp’s opposition and request to vacate) with the <u>exception of Exhibit A</u>, (4) the identified portions of Exhibit 4 to the joint statement (i.e., Kaiser’s opposition to Sharp’s request to vacate), and (5) the identified portions of Exhibit 5 to the joint statement (i.e., the Brooks’ Declaration in support of Kaisers opposition to Sharp’s request to vacate) with the <u>exception of Exhibit 1</u>. The motions are denied as to Exhibit A to the Toooh Declaration and Exhibit 1 to the Brooks Declaration. Those exhibits are the same document—i.e., the Confidential Settlement and Release Agreement. The parties seek to seal this agreement in its entirety, but they have not made
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		a sufficient showing to justify the whole sale sealing or redaction of that agreement. Although it is a confidential agreement, it resolves a lawsuit filed in court. As such, its existence is not worthy of sealing. Moreover, the agreement includes a number of standard settlement terms and other terms for which there is not a sufficient showing to support sealing. As stated, specific financial terms and trade secret information may be sealed, but this request goes well beyond that. The court has given the parties multiple opportunities to redact or otherwise justify the wholesale sealing of this document and they have failed to do so. Accordingly, at the hearing, the parties must be prepared to address how to proceed with the petition to confirm the arbitration award and the request to vacate based on this ruling. All parties are ordered to submit proposed orders granting their motions consistent with the requirements of Rules of Court rules 2.550 and 2.551.) Kaiser’s counsel will be ordered to give notice of this ruling.
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